IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI, (COURT-II)

Item No. 1
CA(CAA)-52/2021

IN THE MATTER OF:
RG Finsec Pvt. Ltd. And M/s. Shield Finance Pvt. Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 07.06.2021

CORAM:
SHRI. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (J)

SHRI. L. N. GUPTA, HON'BLE MEMBER (T)

PRESENT:

ORDER

Order Pronounce in the Open Court today.

Sd/-
(L. N. GUPTA)
MEMBER (T)

Sd/-
(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

Ashwani

NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

C.A.(CAA)-52/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION :

AMONGST

RG FINSEC PRIVATE LIMITED

... Applicant No.1/Transferor Company

AND

TIA ENTERPRISES PRIVATE LIMITED

...Applicant No.2/ Transferor Company

WITH

SHIELD FINANCE PRIVATE LIMITED

..Applicant No. 3/Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on : 07.06.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L.N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Mr. Vijay Kumar Gupta, CA

ORDER

PER SHRI L.N. GUPTA, MEMBER (T)

Under consideration is the Application No. C.A.(CAA)-52/ND/2021 filed by the Applicant Companies under Section 230 to 232 of the Companies Act, 2013. The prayer made in the Application is to dispense with convening and holding of the meeting of Shareholders and Creditors of the Transferor and Transferee Companies for approval of the 'Scheme of Amalgamation' (hereinafter called as **'Scheme'**), which shall take effect from the Appointed Date of 01.04.2021.

2. That M/s RG Finsec Private Limited (hereinafter referred to as the **"Transferor Company No.1")** having CIN no. U17100DL2015PTC279420 is a Private Limited company incorporated under t Companies Act, 2013 on 23.04.2015. The registered office of the Transferor Company No.1 is situated at D-16, 1st Floor, Above ICICI Bank, Prashant Vihar, Sector 14, Rohini, New Delhi-110085.

3. That M/s Tia Enterprise Private Limited (hereinafter referred to as the **"Transferor Company No. 2"**) having CIN no. U22100DL2010PTC200561 is a Private Limited company incorporated under the Erstwhile Companies Act, 1956 on 22.03.2010. The registered office of the Transferor Company No.2 is situated at 101, First Floor, Barodia Tower, D- Block Central Market, Prashant Vihar, Rohini, New Delhi-110085.

4. That M/s Shield Finance Private Limited (hereinafter referred to as the **"Transferee Company"**) having CIN no. U74899DL1994PTC062299 is a company incorporated under Erstwhile Companies Act, 1956 on 21.10.1994. The registered office of the Transferee Company is situated at 314, RG Mall Sector 9 Rohini, New Delhi-110085.

5. That the present Petition has been jointly filed by all the Transferor and Transferee Companies. All the 'Transferor' and 'Transferee' Companies together are called **'Applicant Companies'** hereinafter. That the Registered offices of all the Applicant Companies are in Delhi and therefore, the jurisdiction lies with this Bench.

6. It is seen from the record that the Board of Directors of all the Applicant Companies vide separate meetings held on 03.08.2020 have approved the proposed 'Scheme of Amalgamation'.

7. That the Applicant Companies have given the following justification for the proposed Scheme of Amalgamation:

> *"i) Pooling of resources and infrastructure of the entities to their common advantage, resulting in a more productive utilization of the resources, costs andoperational efficiencies faster and effective decision making and itsimplementation, which would be beneficial for all stakeholders.*
>
> *ii) Integrate, rationalize and streamline the management and administrative structure of the merged business and achieve cost saving*
>
> *iii) Avoid duplication of regulatory compliances and statutory filings with various government departments;….etc."*

8. That all the Applicant Companies have filed their Affidavits in compliance of Section 230(2)(a) of Companies Act 2013 submitting therein that none of the Applicant Companies are under any prosecution/ investigation/ inquiry under the Companies Act, 2013.

9. That the Applicant Companies have also placed on record the Certificate from the Statutory Auditors confirming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act, 2013.

10. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have also filed their latest Balance Sheets as on 31.03.2020.

11. That the position regarding the Applicant Company-wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised below :

Company	No. of Share holders	Percentage of Shareholders given Consent	No. of Unsecured Creditors	Percentage of Unsecured Creditors given Consent (in value)
RG Finsec Private Limited. Applicant No.1 Company/ Transferor	2	100%	Nil	NA
Tia Enterprise Private LimitedApplicant No.2/ Transferor Company	5	100%	3	100% (in value)
Shield Finance Private Limited Applicant No.3/ Transferor Company	21	100%	6	100% (in value)

12. That it is submitted by the Applicants that all the shareholders of the Applicant Companies have given 'no objection' to the Scheme on their respective affidavits. Therefore, the requirement of convening the Meetings of Shareholders in respect of the Applicant Companies is dispensed with.

13. That it is further submitted by the Applicants that the '100% in value' of the unsecured creditors of the Applicant Company No. 2 and 3 have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Unsecured Creditors in respect of the Applicant Company no. 2 and 3 is dispensed with. As there are no unsecured creditors in the Applicant No. 1 Company, question of convening their meeting does not arise.

14. Since there are no Secured Creditors in any of the Applicant Companies, question of convening their meeting does not arise.

15. **The Application is allowed in the aforesaid terms.**

- S/d-
(L.N. Gupta)
Member (T)

- S/d-
(Abni Ranjan Kumar Sinha)
Member (J)